

JUSTIFICATION FOR USE OF OTHER THAN FULL AND OPEN
COMPETITION

1. Contracting Activity.

Department of the Navy, Military Sealift Command (MSC), Ship Charter Contracts Division (N103).

2. Description of the Action Being Approved.

The purpose of this justification is to obtain approval to issue a modification to contract N3220524C4099 on a sole-source basis to the incumbent contractor, Schuyler Line Navigation Company, LLC (SLNC) to tow the U.S. Army Corps of Engineers (USACE) shallow draft Dredge MURDEN to Naval Station Guantanamo Bay (NSGB), Cuba. According to the Memorandum from the White House “Expanding Migrant Operations Center at Naval Station Guantanamo Bay to Full Capacity”, dated 29 January 2025, the Secretary of Defense and the Secretary of Homeland Security were directed to take all appropriate actions to provide additional detention space for high-priority criminal aliens unlawfully present in the United States.

To adhere to the directive, NSGB is in urgent need of dredging to allow vessels to service the pier in support of the White House Memorandum. The USACE dredge MURDEN will be responsible for the task, but is not capable reaching NSGB and requires towing services from Port Everglades, FL.

3. Description of the Supplies/Services.

The towing services will provide a temporary, time-chartered, U.S. flag, ocean-going certified tug to support the urgent mission for the following two charter periods:

Charter Period #1:

Lay Days: [REDACTED]

Load Port: [REDACTED]

Delivery/Discharge Port: Guantanamo Bay, Cuba, [REDACTED]

Period of Performance: 6 days

Charter Period #2

Lay Days: [REDACTED]

Load Port: Guantanamo Bay, Cuba, [REDACTED]

Delivery/Discharge Port: [REDACTED]

Period of Performance: 6 days

Estimated Dollar Value

	FY 2025 Total
RDT&E	\$0.00
OPN	\$0.00
O&MN	[REDACTED]
Total	[REDACTED]

The estimate includes two (2) charter periods, two (2) delivery bonus fees, two (2) redelivery bonus fees, and reimbursable fuel (Navy Working Capital Funds).

4. Statutory Authority Permitting Other Than Full and Open Competition.

41 U.S.C. § 1901, as implemented by FAR 13.501 special documentation requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

FAR 13.501 allows agencies to conduct sole-source acquisitions under simplified acquisition procedures. FAR 13.501 exempts agencies from the requirements of FAR Part 6 but must utilize the same J&A format as found in 6.303-2. In addition, agencies conducting sole-source acquisitions under FAR 13.501 must follow the same posting requirements as found in FAR 6.305.

The White House Memorandum directs an urgent need to detain high-risk immigrant criminals to halt the border invasion, dismantle criminal cartels, and restore national sovereignty. MSC was tasked with this urgent charter requirement [REDACTED]. As the period of performance is to commence on or around [REDACTED], time does not permit soliciting offers from additional sources in a timely Procurement Action Lead Time (PALT). Therefore, not conducting this unusual and compelling urgent sole-source acquisition in favor of a competitive procurement would delay the mission and result in serious injury to the Government.

6. Justification to Not Solicit Offers from Additional Sources.

MSC was tasked with the urgent requirement on [REDACTED]. As the period of performance is to commence on or around [REDACTED], time does not permit soliciting offers from additional sources in a timely Procurement Action Lead Time (PALT). As stated above, not conducting this unusual and compelling urgent sole-source acquisition would delay the mission and result in serious injury to the Government.

7. Determination of Fair and Reasonable Cost.

[REDACTED]

8. Actions to Remove Barriers to Future Competition.

The Government has competed actions for open ocean towing requirements in the past and received proposals from multiple vendors capable of satisfying the requirement. Due to the urgent nature of this requirement, time does not permit full-and-open competition. To the maximum extent practicable, MSC intends to continue to solicit and competitively award future charter requirements on a full-and-open basis, in the appropriate PALT time required to complete the actions.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief. I certify that the supporting data that forms the basis for this justification is complete and accurate.

Technical/Requirements Cognizance.



Signature

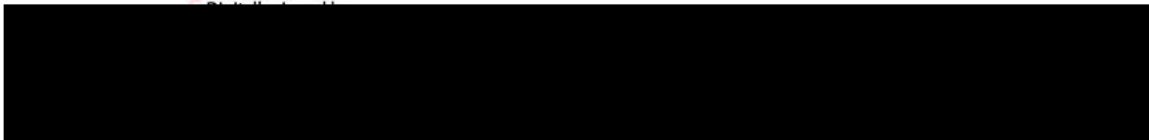
Name (Printed)

Phone No.

Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.



Signature

Name (Printed)

Phone No.

Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.



Signature



Name (Printed)

Phone No.

Date

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